

Court No. - 40

Case :- CONTEMPT APPLICATION (CIVIL) No. - 5636 of 2014

Applicant :- M/S Pooja Aata Chakki

Opposite Party :- Sri Vijay Kapoor, Exe. Engineer Vidyut Vitran Khand li

Counsel for Applicant :- Sanjay Mishra

Hon'ble Rajesh Dayal Khare,J.

List of fresh cases has been revised.

Heard learned counsel for the applicant

The grievance of the applicant is that the opposite party-contemnor has intentionally and deliberately flouted the order of the Writ Court dated 28.5.2014 passed in Civil Misc. Writ Petition No. 30229 of 2014, copy of which order has been annexed as annexure-5 to the affidavit accompanying this contempt application, whereby the opposite party was directed to decide the application/objection of the applicant with regard to electricity bill under Clause 6.5 of the Electricity Supply Code, 2005.

Learned counsel for the applicant contends that the aforesaid order of the writ Court was served upon the opposite party by registered post on 11.6.2014, copy of which has been filed as annexure-7 to the affidavit accompanying this application. It is contended that till date grievance of the applicant has been decided and surcharge levelled upon the applicant is continuously increasing. It is contended that the opposite party has willfully flouted the order of the Writ Court.

The opposite party is bound by the order of this court and in case he does not comply with the directions of the writ court within a period of two months of receipt of this order, without any reasonable cause, the court would have no option but to proceed against him under the Contempt of Courts Act.

The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed stamped envelope to the office within two weeks from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite party within three weeks from today and keep a record thereof.

The opposite party shall comply with the directions of the writ court and intimate him of the order through the self-addressed envelope within a week thereafter.

In case, opposite parties does not comply with the aforesaid directions, it would be open to the applicant to approach this court again.

With the aforesaid observations, this application is finally disposed of at this stage.

Order Date :- 9.10.2014/faraz

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Counsel for Applicant :- Sanjay Mishra

Hon'ble Bala Krishna Narayana,J.

Heard learned counsel for the applicant.

The grievance of the applicant is that the opposite party-contemnor has willfully and deliberately flouted the order of the writ Court dated 28.5.2014 passed in Writ -C No. 30229 of 2014, copy of which order has been filed as annexure-5 to the affidavit accompanying this application.

Issue notice to opposite party returnable within four weeks to explain as to why charges be not framed for committing wilful and deliberate contempt of the order of this Court. Steps be taken within a week.

The opposite party may file counter affidavit within the aforesaid period.

Rejoinder affidavit, if any, may be filed within two weeks thereafter.

List after the expiry of the aforesaid period.

Order Date :- 21.1.2015/Faridul

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Counsel for Applicant :- Sanjay Mishra

Hon'ble Bala Krishna Narayana,J.

Civil Misc. Amendment Application No. 410888 of 2014

Learned counsel for the applicant is permitted to correct the name of opposite party-contemnor.

Heard learned counsel for the parties.

For the reasons given in paragraph no. 2, the amendment application is allowed.

Let the amendment be carried out during the course of the day.

Order Date :- 21.1.2015/Faridul

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Opposite Party :- Sri Vijay Kapoor, Exe. Engineer Vidyut Vitran Khand Ii

Counsel for Applicant :- Sanjay Mishra

Counsel for Opposite Party :- S.C.

Hon'ble Bala Krishna Narayana,J.

Crl. Misc. Correction Application No. 38578 of 2013

This is an application for correction of order dated 21.01.2015.

It is admitted amongst the learned counsel for the parties that wrong order has been transcribed on the amendment application and on the order sheet on 21.01.2015, therefore, the same is recalled and in its place fresh order is being passed which is as under.

"Heard learned counsel for the parties.

For the reasons given in paragraph no. 2 of the accompanying affidavit, the amendment application is allowed.

Learned counsel for the applicant is permitted to correct the name of opposite party-contemnor.

Let the amendment be carried out during the course of the day.

Computer Section is also directed to correct the name of the opposite party in its date base.

Since the applicant has been permitted to correct the name of the opposite party contemnor, he is granted three weeks' time to comply with the order of this court dated 09.10.2014.

Let fresh copy of this order be applied and issued.

Order Date :- 4.2.2015/Abhishek Sri.